

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #05	CCRB Case #: 201502495	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 03/16/2015 2:17 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/16/2016	Precinct: 46		
Date/Time CV Reported Thu, 04/02/2015 4:26 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 04/02/2015 4:26 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Santana	15369	951202	046 PCT
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Yefersson Salasmartinez	15419	957123	046 PCT
2. POM Scott Monier	23049	942228	046 PCT
3. POM Roberto Vasquez	17258	952314	046 PCT
4. POM Carlos Pappagallo	15399	952090	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jason Santana	Force: PO Jason Santana pointed his gun at § 87(2)(b) and § 87(2)(b)	A . Complainant Uncooperative
B . Officers	Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b)	B . Complainant Uncooperative
C . Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	C . Complainant Uncooperative
D . POM Jason Santana	Discourtesy: PO Jason Santana spoke rudely to § 87(2)(b)	D . Complainant Uncooperative
E . POM Jason Santana	Off. Language: PO Jason Santana made remarks to § 87(2)(b) based upon ethnicity.	E . Complainant Uncooperative

Case Summary

§ 87(2)(b) filed this complaint online with the CCRB on April 2, 2015, on the behalf of herself; her fiancé, § 87(2)(b) her step-brother, § 87(2)(b) and her brother-in-law, § 87(2)(b) § 87(2)(b) identified PO Jason Santana of the 46th Precinct as a subject officer in her complaint by obtaining his name and tax registry number from her arrest paperwork.

Between April 6, 2015, and April 14, 2015, five calls were placed to § 87(2)(b). During the first two contact attempts, voicemails were left. On April 6, 2015, a please call letter was mailed to § 87(2)(b) and it was returned to the CCRB by the US Postal Service as “not deliverable as addressed.” On April 7, 2015, § 87(2)(b) contacted the CCRB via phone, confirmed her address, and scheduled an interview for April 9, 2015. § 87(2)(b) failed to appear at the CCRB for her appointment and made no attempt to contact the CCRB ahead of time to cancel or reschedule. On April 10, 2015, a missed appointment letter was mailed to § 87(2)(b) and it was not returned to the CCRB by the US Postal Service. During the final three contact attempts to § 87(2)(b) voicemails were left. On April 22, 2015, a New York City Department of Correction search revealed that § 87(2)(b) was not incarcerated.

§ 87(2)(b) provided an address for § 87(2)(b) but she did not provide a phone number for him. On April 6, 2015, a please call letter was mailed to § 87(2)(b) and it was returned to the CCRB by the US Postal Service as “attempted – not known.” On April 13, 2015, a final please call letter was sent to § 87(2)(b) and it was not returned to the CCRB by the US Postal Service. Searches of BADS, WhitePages, and Lexis Nexis failed to produce additional contact information for § 87(2)(b). On April 22, 2015, a New York City Department of Correction search revealed that § 87(2)(b) was not incarcerated.

On April 7, 2015, § 87(2)(b) identified § 87(2)(b) as an additional victim, but she refused to provide any contact information for him. Searches of WhitePages and BADS failed to produce contact information for § 87(2)(b) and a Lexis Nexis search could not be conducted without further identifying information. On April 22, 2015, a New York City Department of Correction search revealed that 16 individuals named § 87(2)(b) were incarcerated, and it was impossible to determine whether § 87(2)(b) was one of these individuals without further identifying information for him.

On April 7, 2015, § 87(2)(b) identified § 87(2)(b) as an additional victim, but she refused to provide any contact information for him. On April 9, 2015, a search of BADS produced an arrest report for § 87(2)(b) on the date of the incident. The arrest report provided an address for § 87(2)(b) but it did not provide a phone number for him. On April 16, 2015, and April 22, 2015, please call letters were mailed to § 87(2)(b) and they were not returned to the CCRB by the US Postal Service. On April 16, 2015, a search of WhitePages produced a possible phone number for § 87(2)(b) but a call to this number revealed that it was not in service. A search of Lexis Nexis failed to produce additional contact information for § 87(2)(b). On April 22, 2015, a New York City Department of Correction search revealed that § 87(2)(b) was not incarcerated.

As of the date of this report, § 87(2)(b) has missed one appointment and has failed to respond to subsequent contact attempts. In addition, the CCRB has been unable to contact § 87(2)(b) or § 87(2)(b). Therefore, it is recommended that this case be closed as **complainant uncooperative**.

Pod 5: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date